Copyright and Ownership of Artistic Material

Copyright is the legal ownership of an individual or combined elements of an original idea for anything musical such as lyrics, melody, structure and arrangement. Copyright effectively arises automatically once something original has been created, in the sense that the copyright is not something that has to be applied for or registered. An original idea is something that is created using the composer's own skill and labour, so it does not have to be a unique or groundbreaking idea.

To apply a copyright to something, it must be produced in a tangible form and proof of the date is required so that it can be confirmed when the idea was created by a particular person. This can be in the form of a written sheet or recording (on a pen drive) that has been mailed via special delivery and stored, unopened. The special delivery means it will be time stamped by a third party.

Other methods can be to burn a file to a format which cannot be altered and is time stamped or upload a copy cloud storage where times cannot be altered. Email is another method, but can be risky if accounts are locked or data is deleted by accident, it can be difficult to retrieve, especially with the desired time stamp.

The work can also be registered with PRS, which will cement ownership and can create a revenue stream via royalties.

The Copyright, Design and Patents Act (1988) protect a huge range of works such as;

- Literary works, covering anything written in words, number or symbols
- Dramatic works, anything movement based such as choreography and stage directions for theatrical productions
- Musical work like melody, harmony, structure, notation and arrangement

- Sound recordings such as studio recordings and live performance
- Other productions such as film, broadcasting and typographic arrangement of books/magazine/newspapers can also be covered by copyrights

It's important to note that, as a musician, different copyrights are applied to the musical work, the sound recording and any visual media (music video for example).

The restricted acts section gives an overview of what the copyright owner is legally allowed to do with the material with regards to copying, lending, performing, public distribution etc. Obviously, as the copyright owner, they can essentially use the material however they decide to.

It also lays out what is defined as infringement of the copyright, which is use of the material without the owner's permission. This basically covers anything at all beyond private use, study and criticism. If a person wanted to use copyright material for anything such as copying, editing, sampling, performing or public consumption, then they must have permission, especially if they stand to financially gain from it. If they do so without the permission, it is classed as infringement and could leave them liable to legal action.

Moral rights covers the creators right to be recognised as such if the work is used in any way.

Attribution is the right to be named as the creator of anything that is published, performed, broadcast or shown in public. This must be formally claimed in writing; the assumption should never be made that it is a given.

False attribution is the right that ensures a creator is not given recognition for something they did not create.

Creators have the right to **object to derogatory treatment** of their work. Adaptation of alteration of the work against the wishes of the owner. Also, any political use that might not align with the owners own views.

There are several examples of when artists have spoken out against the unsolicited use of their material by politicians that they prefer not to be associated with.

The right to privacy in certain photographs and films protects any video or photos intended for private use from being used anywhere against the owner's permission. Family photos or wedding photos are a good example of this. If these were used by someone and presented to the public, without expressed permission, it would violate the moral rights set out in The Copyright, Design and Patents Act (1988)

The author of a piece of work is defined as the person who created it. Authorship cannot be transferred as it is permanently tied to the person who created the work, which becomes automatic as soon as it has been created. The author holds the moral rights for any piece of work created by them. This covers the creative side of the spectrum.

The owner is the person or organisation who is in control of the economic rights to a piece of work. The owner is the person or people who receive any money from the distribution and use of a piece of work. They are also the people who grant permission for its commercial use. The author and owner can be the same person but may also be different people. Ownership can be transferred to different people by way of selling or assigning.

A copyright remains property of the owner until 70 years from the end of the year they die (if they died in August 2010, the 70 years will begin at the end of December, so the copyright will remain in place till 31st December 2080). If there is more than one owner, the date is taken from when the last one has died.

For a sound recording there are a couple of factors to consider -

- This covers the recording itself, not the composition
- If there is more than one, the ownership remains after the death of the last surviving owner for 70 years after their death (end of the calendar year)

- If the work is recorded, but not released, the copyright lasts for 50 years from when it was made, if it is released within this 50myear time frame, the copyright will extend to 50 years after its release
- The performer of the sound recording will retain moral rights to the performance and should be credited appropriately

Explain the function of typical musical industry contracts for live performance, management, publishing and recording.
There are 4 major contracts covered by the music industry, these are;

- Live performance contracts are made to ensure the artist is fairly treated and paid for performing at a prescribed venue. It protects the artist and the venue. The contract will dictate who is performing, how long the performance will be, where and when it is taking place, what payment will be given, any requirements the performer or venue might have. There will also be clauses for cancellation and health and safety expectations from both parties
- Management contracts are an agreement between an artist and a manager, laying out the expectations of the managers but it is sensible to include the limit of their duty of care in case opportunities arise that could be deemed out with the managers area of expertise. The key clauses explain the terms and the managers role for the artists they represent, what their rate of pay is expressed as a percentage commission, and which income streams are included and not included. An important clause to include is for third party agreements, which should prevent the manager signing anything on the artists behalf. It will have a length of contract and the conditions for termination as well.
- Publishing contracts are put in place allowing an artist to assign their copyright ownership to a music publisher in exchange for promotional services which will generate revenue for works. The artist will still receive royalties, less the publisher fee, and may also receive an advance on the royalties from the publisher, meaning they do not have to wait for their material to start generating income. The main clauses in a publishing contract

include the term, how long the contract is valid for. The length of the allocation of the rights, meaning the publisher will only own the rights to the material for an agreed length of time, after that they go back to the creator. Advance terms and conditions would also appear in the contract, this would be negotiated between the publisher and the artist and would be paid back from royalties earned, which the publisher would keep. Royalties would be another clause, which would state the royalties paid by the publisher to the creator. These royalties are collected from the various income streams generated through use of the work.

- Recording contracts are agreements between a record company and artist that cover the expectations the company would have of the artist. It will explain terms of exclusivity and income streams, as well as the ownership of materials produced. The main clauses to note are the terms of royalties, and how they are distributed to the artist. Related to this would be any advances given to the artist and how the record company would expect to recoup the advanced amount. Record agreement length would explain how much material the company would expect the artist to record over a given time, this would be negotiated between the two and the company would have to make a commitment to release the material in a timely manner. Another clause will be an agreement of re-recording restriction, where the artist will agree not to re-record any material released during their tenure with the company, this will be built within a specific timeline agreed by both parties.
  360 agreements are when the company looks after every part of the artists career and are used by some. Some artists prefer to have everything in one place; the company's fees would obviously be much higher in this instance and would greatly reduce the artists royalty income.

The PRS (Performing Rights Society) and MCPS (Mechanical Copyright Protection Society) are both organisations who ensure royalties are paid

to the appropriate persons for use of their material. There is a service agreement between the two organisations which allows PRS for music to provide administrative services and rights management to MCPS. There is a distinction between the two, however.

PRS will ensure royalties are distributed for use of material on TV or radio broadcasts, public performances (live and recorded) and downloads or streams. Any venue that uses the material will pay a licence fee to PRS who can track usage and pay the creator accordingly. Live performers can submit their setlists on the PRS website to ensure appropriate royalty payments for their own material and any covers they might perform. When someone signs up and registers work with PRS, they assign the performing rights to them (not the copyright ownership) which gives PRS control of the licensing of the work. PRS pay the royalties in April, July, October and December, except for online streaming, which is paid monthly.

The MCPS is essentially a branch of the PRS for music, which ensures appropriate royalties are distributed for each time a physical (or mechanical) copy of a piece of work, such as CD's or vinyl is made and sold. Use of music on TV and radio, and streaming is also covered. They pay all their royalties on a monthly basis. The income stream comes from PRS licensing and the royalties can be split between the two, therefore it is important for artists to ensure they are registered with both organisations.

Phonographic Performance Limited (PPL) are the UK based body who ensure performers and owners of recorded music (as in the sound recording) are suitably monetised when the recordings are played in public.

Like PRS, PPL collect a license fee from the various media sectors, and the royalties are distributed to anyone registered on the PPL site to have played on a song. This includes any contribution that is recognised on the registration and the copyright owner.

PRS and MCPS each collect a £100 lifetime membership fee for artists to join, PPL is free of charge, but it is prudent to be affiliated with all 3 as

they can generate 3 different income streams for the same material. Registering music is free on all these platforms once you are a member.